Carriage Lots

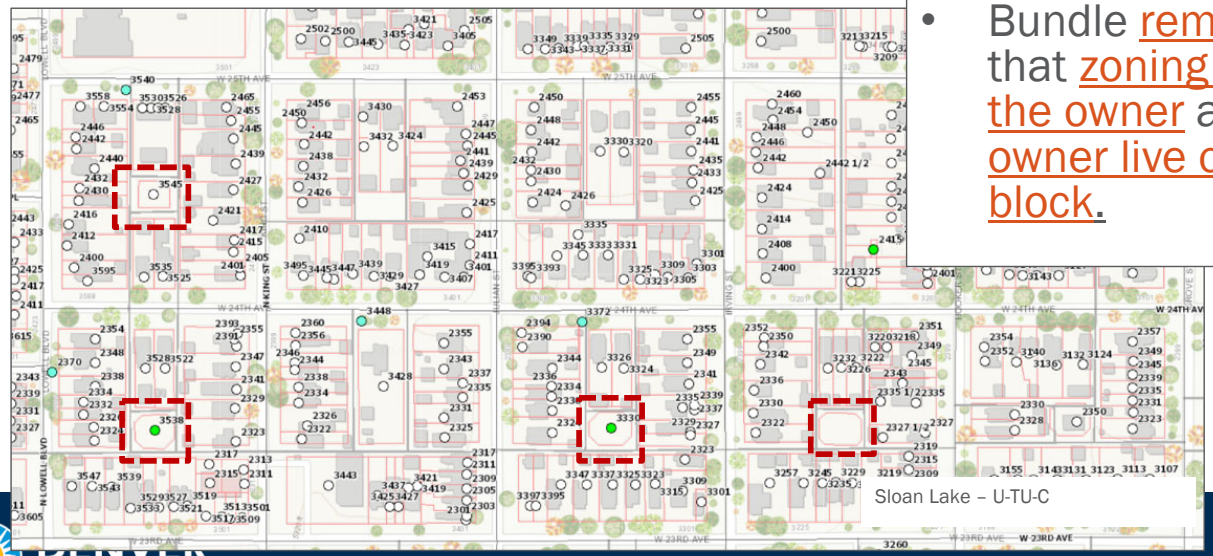
DZC Sec. 12.10.4, Development on Carriage Lots

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What is a carriage lot?

- Piece of land surrounded on 4 sides by alleys (approx. 36 in city)
- Until 2010, limited to vehicle parking and garages
- In 2010, rights expanded to include an accessory dwelling unit (ADU) and accessory garden
- Bundle removed the requirements that zoning permit is personal to the owner and requirement that owner live on the surrounding block.

Sec. 12.10.4



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Carriage lots are pieces of land surrounded on 4 sides by alleys – typically found in the northwest area of the city with some in the park hill neighborhood.

Until 2010, carriage lots were limited to vehicle parking and garages; in 2010 those rights were expanded to allow an accessory dwelling unit use and an accessory garden use.

The goal of the changes in the bundle is to simplify and clarify carriage lot standards and to advance equity in how the Denver zoning code treats residents. This is one of many places in the Code where the Bundle removes a requirement that the permit be personal to the applicant. Those requirements are a symptom of an attempt to regulate the 'who' instead of the 'what and where' of development.

Carriage Lot Development

DZC Sec. 12.10.4

Allowed Uses?	EXPANDED
Primary residence on the block requirement?	REMOVED
Density?	NO CHANGE
Structure – size, footprint, height?	NO CHANGE
Use review for a new zoning permit (ZPIN)?	NO CHANGE
Multi-agency review of development on a carriage lot?	NO CHANGE
Issued zoning permit personal to the original permittee?	REMOVED

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The revisions expand the allowed uses by removing the requirement that a structure on a carriage lot be accessory to a dwelling on the surrounding block. That means that a single-unit dwelling can now be a primary use on a carriage lot, as well as an accessory use.

Next, we removed the requirement that the owner have their primary residence on the surrounding block. And, by requiring that an any single-unit dwelling follow the standards for the DADU building form, we are not proposing a change to the density, structure size footprint or height, or the procedure for developing on a carriage lot. The ZPIN process is still applicable to development of a carriage lot – that means that when an application for development is received, a written notice and a posted notice are required and the zoning administrator must take into account all comments received in making a decision.

There is also a multi-agency review of development on a carriage lot that includes fire, stormwater, building, and others.
Finally, in the adopted Bundle, the requirement that the zoning permit be personal to the applicant has been removed.

Carriage Lot Development

12.10.4.2 Primary Uses and Building Forms Allowed

A. Primary Uses Allowed

The uses allowed on a Carriage Lot are limited to the following Primary Uses only:

1. Single-Unit Dwelling; or
2. Urban Garden, Unenclosed only.

B. Maximum Number of Primary Uses per Carriage Lot

1. No more than 1 primary Single-Unit Dwelling Use is allowed on a single Carriage Lot, regardless of the number of Zone Lots existing on the Carriage Lot.
2. No more than 1 Urban Garden primary use is allowed on each Zone Lot located on a Carriage Lot.

C. Use Limitations Applicable to All Primary Uses

Primary uses permitted on a Carriage Lot shall be subject to all use limitations specific to the primary use as stated in the Use and Parking Standard Table for the applicable zone district.

D. Urban Garden Primary Use - Applicable Use Limitation

An Urban Garden primary use established on a Carriage Lot or portion thereof is exempt from providing minimum vehicle and bicycle parking otherwise required in the applicable Use and Parking Table for the subject zone district.

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In the code, this is what those changes look like: The section has been reorganized with a lot of new content. Starting with A here, the text in red here shows that a single-unit dwelling is now allowed as a primary use on a carriage lot, whereas before only accessory uses were allowed.

B states that no more than 1 primary single-unit dwelling use is allowed on a single carriage lot. So, that means that even in a TU zone district, a carriage lot may only have a single SUD. No more than one urban garden primary use is allowed on each zone lot on a carriage lot.

C states that the use limitations are applicable as they're shown in the use and parking standards table for the applicable zone district.

D – urban gardens are exempt from providing minimum vehicle and bicycle parking.

Carriage Lot Development

E. Building Forms for Allowed Primary Uses

1. DADU Building Form for Allowed Primary Single-Unit Dwelling Use

The Detached Accessory Dwelling Unit ("DADU") building form shall be used to establish an allowed Single-Unit Dwelling primary use on a Carriage Lot, subject to the exceptions allowed under Section 12.10.4.4.

2. Building Forms for Allowed Primary Urban Garden Use

The Urban Garden primary use is allowed as an unenclosed use only. No primary building forms are allowed on a Carriage Lot with a permitted Urban Garden use. Any structure that serves the primary Urban Garden use shall be secondary and incidental, and

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E.1. states that that Detached ADU building form must set the standards for a single-unit dwelling primary use on a carriage lot, with limited exceptions in section 12.10.4.4.

For the urban garden primary use, no primary building forms are allowed on a carriage lot; however, any structures that serve the garden shall be secondary and incidental and shall follow either the general or minor detached structure building form.

Carriage Lot Development

Sec. 12.10.4.3, Accessory Uses and Building Forms

12.10.4.3 Accessory Uses and Building Forms Allowed

A. Accessory Uses Allowed

The accessory uses allowed on a Carriage Lot are limited to only the following Accessory Uses:

1. Noncommercial Keeping or Off-Street Parking of Motor Vehicles inside a Completely Enclosed Structure (residential Private Garage) accessory to a Primary residential use located in the Block surrounding the Carriage Lot or portion thereof; or
2. An Accessory Dwelling Unit use accessory to a primary Single Unit Dwelling Use located in the Block surrounding the Carriage Lot or portion thereof; or
3. Unenclosed accessory Garden use accessory to a primary residential use located in the block surrounding the Carriage Lot or portion thereof; or
4. Accessory uses permitted in the applicable zone district for a primary Single-Unit Dwelling use established on a Carriage Lot, including accessory parking uses, but not including the following accessory uses:
   a. Accessory Dwelling Unit; or
   b. Child Care Home, Large or Small.
5. Accessory uses permitted in the applicable zone district for a primary Urban Garden use established on a Carriage Lot, including accessory parking uses.

In terms of accessory uses, we've maintained the keeping or off-street parking of motor vehicles inside a completely enclosed structure; 2, the ADU accessory to a primary single unit dwelling use, and unenclosed accessory garden use; We've added two categories of accessory uses here –number 4 is for accessory uses permitted in the zone district for a primary single-unit dwelling. However, this excludes the ADU and childcare home accessory uses. This means that a primary single-unit dwelling and an accessory dwelling unit CANNOT be located on the same carriage lot. Finally, those accessory uses permitted in the zone district for a primary urban garden use can also be allowed on a carriage lot.

Carriage Lot Accessory Uses (cont'd)

Sec. 12.10.4.3, Accessory Uses and Building Forms

B. Accessory Dwelling Unit Use of Detached Structure - Applicable Use Limitations

1. Except as otherwise required or allowed by the specific standards in this Section 12.10.4.4, the detached accessory structure may be used for an Accessory Dwelling Unit use provided such Accessory Dwelling Unit use is permitted in the applicable zone district, and provided the proposed Accessory Dwelling Unit use complies with the use limitations for Accessory Dwelling Units stated in Section 11.8.2 of this Code.

2. An Accessory Dwelling Unit Use is not allowed on a Carriage Lot if a Primary Single-Unit Dwelling use has been previously permitted on the same Carriage Lot and there has not been an Abandonment of such Single-Unit Dwelling use.

C. Accessory Parking Use of Detached Structure - Applicable Use Limitations

Detached accessory structures permitted for accessory Keeping or Off-Street Parking of Motor Vehicles use shall only be utilized by other conforming Primary Uses located on the block surrounding the Carriage Lot, or as specifically allowed by Section 10.9.3.7, Non-Resident Off-Street Garage Parking for Dwelling Units.

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Use limitations have been relocated to this section. Item B.1 points users to the use limitations for ADUs, which are found in section 11..8.2 of the DZC.

Item B.2. states that an ADU use is not allowed on a carriage lot when a single-unit primary dwelling has been permitted on the same zone lot. The bottom line here is that you cannot have a single unit dwelling along with an ADU. Only one dwelling unit is allowed on a carriage lot. Finally, item C states that accessory parking is allowed, but the vehicles shall only be utilized by other conforming primary uses located on the surrounding block.

Carriage Lot Development

Sec. 12.10.4.4 Standards for Development on Carriage Lots

4. Maximum Building Coverage by Neighborhood Context

The following maximum building coverage standard shall apply to a ~~z~~Zone ~~l~~Lot located on a Carriage Lot or portion thereof separately from any other ~~z~~Zone ~~l~~Lot located on the same Carriage Lot:

a. **Suburban (S-), Urban Edge (E-), and Urban (U-) Zone Districts**
Maximum building coverage for all structures per ~~z~~Zone ~~l~~Lot: 37.5%.

b. **General (G-), Urban Center (C-), Downtown (D-), and Industrial (I-) Zone Districts**
Maximum building coverage for all structures per ~~z~~Zone ~~l~~Lot: 50%.

c. **Exceptions Not Allowed**
Exceptions from maximum building coverage (e.g., for an Unenclosed Porch) shall not apply to development on a Carriage Lot.

5. DADU Building Form Standards Not Applicable to Carriage Lot Development

The following Detached Accessory Dwelling Unit building form standards shall not apply to development on a Carriage Lot:

a. Requirement for location of the ~~detached accessory~~ structure in rear percentage of ~~z~~Zone ~~l~~Lot.

b. When developed for the establishment of a Single-Unit Dwelling primary use, the following:

i. "Limitation on Gross Floor Area of the Accessory Dwelling Unit Use;" and

ii. Limitation on uses of the DADU building form to accessory uses only.

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- No increase in building coverage for carriage lot development.
- DADU building form standards apply, except for gross floor area limit and limitation to accessory uses (because a Single Unit Dwelling primary use is now allowed).

Carriage Lot Development

Sec. 12.10.4.5, Zoning Permit Review Procedure and Conditions

12.10.4.5 Zoning Permit Review Procedure and Conditions

A. The permit application under this subsection shall be subject to Zoning Permit Review with Informational Notice ("ZPIN"), according to Section 12.4.2 of this Code.

B. In deciding to approve, approve with conditions, or deny the application, the Zoning Administrator shall consider written comments of all interested parties and the impact of the proposed ~~detached accessory~~ structure and proposed use on adjoining properties.

C. ~~The granting of the zoning permit shall be personal to the Applicant and subsequent permittee, and therefore shall not run with the land. For example, a change in the Carriage Lot's ownership after issuance of a zoning permit shall terminate the zoning permit, which shall become null and void.~~

D. ~~An approved zoning permit for use of or construction on a Carriage Lot shall not be valid until the Applicant has executed an agreement listing the terms and conditions fixed by the Zoning Administrator and the conditions set forth in this Section 12.10.4. This Agreement shall be recorded in the real property records of the Denver County Clerk and Recorder.~~

Lastly, this section 12.10.4.5 is where we have removed the requirement that the permit be personal to the applicant, in C. Item D requires that the applicant execute an agreement agreeing to terms and conditions set by the zoning administrator. Approval of the permit should not be contingent on a separate agreement.